



CHAPTER liv

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity known as the Consolidated Municipal Charity and certain other Charities in the Borough of Ludlow in the County of Salop. [5th July 1956.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-five reported that they had approved and certified a scheme for the application or management of the following Charities in the Borough of Ludlow in the County of Salop:—

1. The Consolidated Municipal Charity (including the Charities of Margaret Phillips Thomas Botfield Emily Felton Maria Alicia Johanna Nightingale and William Page);
2. The Minor Charities comprising—
 - (1) The Charity of Thomas Hollingsworth;
 - (2) The Charity of Edmund Jones;
 - (3) The Charity of Eleanor Handford;
 - (4) The Charity of John Long;
 - (5) The Charity of Evan Phillips;
 - (6) The Charity of Mrs. Robinson;
 - (7) The Charity of Richard Nash;
 - (8) The Charity of Janns Brettell Vaughan;
 - (9) The Charity of Sarah Owen;
 - (10) The Charity of William Archer;
 - (11) The Charity of Mary Betenson;
 - (12) The Charity of Thomas Candland;

- (13) The Charity of Susan Gay (commonly called Plummer's Money);
- (14) The Charity of Morgan Lloyd;
- (15) The Charity of Ann Smith;
- (16) The Charity of James Walter;
- (17) The Charity of Alderman Richard Davies;
- (18) The Charity of Thomas Lane;
- (19) The Charity of Doctor Charles Sonnibank;
- (20) The Charity of Sir Timothy Tourneur;
- (21) The Charity of Alderman Thomas Meyricke;

3. The Charity of Alfred Lloyd:

And whereas it is expedient that the Scheme as the same is fully set out and defined in the Schedule to this Act should be confirmed:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Confirmation
of Scheme.

1. The said Scheme is hereby confirmed:

Provided always that nothing in this Act or in the said Scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

Short title.

2. This Act may be cited as the Consolidated Municipal Charity and certain other Charities (Ludlow) Scheme Confirmation Act 1956.

SCHEDULE

SCHEME FOR THE APPLICATION OR MANAGEMENT OF THE FOLLOWING CHARITIES, IN THE BOROUGH OF LUDLOW, IN THE COUNTY OF SALOP:—

1. The Consolidated Municipal Charity (including the Charities of Margaret Phillips, Thomas Botfield, Emily Felton, Maria Alicia Johanna Nightingale and William Page), regulated by a Scheme of the Charity Commissioners of the 20th March 1914, as varied by Schemes of the said Commissioners of the 1st April 1921 and the 5th October 1937;
2. The Minor Charities, regulated by a Scheme of the Charity Commissioners of the 28th June 1918 and comprising—
 - (1) The Charity of Thomas Hollingsworth;
 - (2) The Charity of Edmund Jones;
 - (3) The Charity of Eleanor Handford;
 - (4) The Charity of John Long;
 - (5) The Charity of Evan Phillips;
 - (6) The Charity of Mrs. Robinson;
 - (7) The Charity of Richard Nash;
 - (8) The Charity of Janns Brettell Vaughan;
 - (9) The Charity of Sarah Owen;
 - (10) The Charity of William Archer;
 - (11) The Charity of Mary Betenson;
 - (12) The Charity of Thomas Candland;
 - (13) The Charity of Susan Gay (commonly called Plummer's Money);
 - (14) The Charity of Morgan Lloyd;
 - (15) The Charity of Ann Smith;
 - (16) The Charity of James Walter;
 - (17) The Charity of Alderman Richard Davies;
 - (18) The Charity of Thomas Lane;
 - (19) The Charity of Doctor Charles Sonnibank;
 - (20) The Charity of Sir Timothy Tourneur;
 - (21) The Charity of Alderman Thomas Meyricke;
3. The Charity of Alfred Lloyd, founded by will proved at Oxford on the 20th January 1951 and administered in connexion with the above-mentioned Minor Charities.

1. *Administration of Charities.*—The above-mentioned Charities and the endowments thereof specified in the schedule hereto and all other the endowments (if any) of the Charities shall be administered and managed so as to give effect to the provisions of this Scheme.

SEPARATE CHARITIES

CONSOLIDATED MUNICIPAL CHARITY

2. *Consolidated Municipal Charity.*—The sum of £17,600 2½ per cent. Consolidated Stock, part of the sum of £21,977 12s. like stock specified in the said schedule and belonging to the above-mentioned Consolidated Municipal Charity shall be the endowment of a separate Charity which shall be called the Palmers' Guild Ludlow Charity.

CHARITY OF JAMES WALTER

3. *Charity of James Walter.*—(i) The sum of £230 9s. 2½ per cent. Consolidated Stock part of the sum of £460 18s. 1d. like stock and the sum of £400 2½ per cent. Treasury Stock, 1975 or after, part of the sum of £800 like stock specified in the said schedule and belonging to the above-mentioned Charity of James Walter being one of the Minor Charities shall be the endowment of a separate Charity which shall be called the Charity of James Walter for the Rector and Preacher.

(ii) The sum of £230 9s. 2½ per cent. Consolidated Stock the remaining part of the said sum of £460 18s. 1d. like stock and the sum of £400 2½ per cent. Treasury Stock, 1975 or after, the remaining part of the said sum of £800 like stock shall be the endowment of a further separate Charity which shall be called the Charity of James Walter for almshouses.

CHARITY OF SARAH OWEN

4. *Charity of Sarah Owen.*—(i) The sum of £500 2½ per cent. Consolidated Stock being part of the sum of £1,000 like stock specified in the said schedule and belonging to the above-mentioned Charity of Sarah Owen shall be the endowment of a separate Charity which shall be called the Charity of Sarah Owen for almshouses.

(ii) The sum of £500 2½ per cent. Consolidated Stock the remaining part of the said sum of £1,000 like stock shall be the endowment of a further separate Charity which shall be called the Charity of Sarah Owen for the poor.

TITLES

5. *Titles.*—(1) The following above-mentioned Charities and the endowments thereof excluding the Palmers' Guild Ludlow Charity and the Charity of James Walter for the Reader and Preacher shall be administered and managed under the title of the King Edward VI Ludlow Charities by the body of trustees hereinafter appointed:—

- (i) The Consolidated Municipal Charity (including the Charities of Margaret Phillips, Thomas Botfield, Emily Felton, Maria Alicia Johanna Nightingale and William Page);
- (ii) The Charities of William Archer, Mary Betenson, Thomas Candland, Susan Gay, Morgan Lloyd, and Ann Smith;
- (iii) The Charity of Sarah Owen for almshouses;
- (iv) The Charity of James Walter for almshouses;
- (v) The Charity of Alfred Lloyd;
- (vi) The Charities of Thomas Hollingsworth, Edmund Jones, Eleanor Handford, John Long, Evan Phillips, Mrs. Robinson, Richard Nash, Janns Brettell Vaughan;
- (vii) The Charity of Sarah Owen for the poor;
- (viii) The Charities of Alderman Richard Davies, Thomas Lane and Doctor Charles Sonnibank; and
- (ix) The Charities of Sir Timothy Tourneur and Alderman Thomas Meyricke.

(2) The above-mentioned Charities numbered (i) to (v) may be referred to together as Hosyer's Almshouse Charities.

(3) The above-mentioned Charities numbered (vi) to (ix) may be referred to together as the General Charities for the Poor.

(4) The above-mentioned Charities numbered (viii) above may be referred to together as the Widows' Charities.

(5) The Palmers' Guild Ludlow Charity and the Charity of James Walter for the Reader and Preacher may be referred to together as the Ecclesiastical Charity.

6. *Area of benefit.*—In this Scheme the expression "the area of benefit" shall mean the area comprising the Borough of Ludlow as constituted from time to time.

TRUSTEES

KING EDWARD VI LUDLOW CHARITIES

7. *Trustees.*—The King Edward VI Ludlow Charities and the endowments thereof shall be administered and managed by a body of Trustees which shall consist when complete of seventeen competent persons being—

One Ex-officio Trustee,
Eight Representative Trustees, and
Eight Co-optative Trustees.

8. *Ex-officio Trustee.*—The Ex-officio Trustee shall be—
The Mayor for the time being of the Borough of Ludlow.

9. *Qualification of Co-optative Trustees.*—The Co-optative Trustees shall be persons residing or carrying on business in or near the area of benefit.

10. *First Representative and Co-optative Trustees.*—Each of the persons immediately before the date of this Scheme holding office under the provisions of the above-mentioned Scheme of the 20th March 1914 as Representative Trustees and each of the persons then holding office under the said provisions as Co-optative Trustees shall be respectively one of the first Representative Trustees and one of the first Co-optative Trustees under this Scheme and subject to the provisions hereinafter contained for determination of trusteeship shall be entitled to hold office for the residue of the term for which he or she was appointed.

11. *Future Representative Trustees.*—Every future Representative Trustee shall be appointed by the Council of the Borough of Ludlow. Each appointment shall be made for a term of three years at a meeting convened and held according to the ordinary practice of the appointing body. The chairman of the meeting shall cause the name of each person appointed to be notified forthwith to the Trustees or their clerk. The person appointed may be but need not be a member of the appointing body.

12. *Future Co-optative Trustees.*—Every future Co-optative Trustee shall be appointed for a term of five years by a resolution of the Trustees to be passed at a special meeting.

PALMERS' GUILD LUDLOW CHARITY AND CHARITY OF
JAMES WALTER FOR READER AND PREACHER

13. *Trustees.*—The Ecclesiastical Charity shall be administered and managed by a body of Trustees which shall consist when complete of ten competent persons being—

Three Ex-officio Trustees,
Two Representative Trustees, and
Five Co-optative Trustees.

14. *Ex-officio Trustees.*—The Ex-officio Trustees shall be—

The Rector and Churchwardens of the Ecclesiastical Parish of St. Laurence, Ludlow, all for the time being.

15. *Representative Trustees.*—The Representative Trustees shall be appointed by the Parochial Church Council of the Ecclesiastical Parish of St. Laurence, Ludlow. Each appointment shall be made for a term of four years at a meeting convened and held according to the ordinary practice of the appointing body. The chairman of the meeting shall cause the name of each person appointed to be notified forthwith to the Trustees or their clerk. The person appointed shall reside or carry on business in or near the said Ecclesiastical Parish and may be but need not be a member of the appointing body.

16. *First Representative Trustees.*—The first Representative Trustees shall be appointed as soon as possible after the date hereof and their names shall be notified to the said Rector on behalf of the Trustees. At the end of two years from the date of the appointment of the first Representative Trustees if both remain Trustees one of them to be determined by lot if necessary shall go out of office, but shall be eligible for reappointment.

17. *Co-optative Trustees.*—The Co-optative Trustees shall be persons residing or carrying on business in or near the said Ecclesiastical Parish.

18. *First Co-optative Trustees.*—The following persons shall be the first Co-optative Trustees and subject to the provisions hereinafter contained for determination of trusteeship shall be entitled to hold office for the following periods respectively:—

Roy Pennington Ashton, of Tree Tops, Livesey Road, Civil Engineer,

Albert John Brown, of 33 Gravel Hill, Retired Master Baker, both in Ludlow, both for three years from the date of this Scheme;

Robert Carpenter, of St. Julian's Avenue, Retired Butcher,

Francis Malan, of Castle Street, Solicitor, and

William Price, of 29 Gravel Hill, Plumber, all in Ludlow, all for five years from the date of this Scheme.

19. *Future Co-optative Trustees.*—Every future Co-optative Trustee shall be appointed for a term of five years by a resolution of the Trustees to be passed at a special meeting.

PROVISIONS CONCERNING BOTH BODIES OF TRUSTEES

20. *Declaration by Trustees.*—No person shall be entitled to act as a Trustee whether on a first or on any subsequent entry into office until after signing in the minute book of the Trustees a declaration of acceptance and of willingness to act in the trusts of this Scheme.

21. *Determination of trusteeship.*—Any Co-optative Trustee who ceases to be qualified as aforesaid, any Representative or Co-optative Trustee who is absent from all meetings of the Trustees during a period of one year and any Trustee who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the Trustees a wish to resign shall cease thereupon to be a Trustee.

22. *Vacancies.*—Upon the occurrence of a vacancy the Trustees shall cause a note thereof to be entered in their minute book at their next meeting and in the case of a vacancy in the office of Representative Trustee shall cause notice thereof to be given as soon as possible to the proper appointing body. Any competent Trustee may be re-appointed. No vacancy in the office of Co-optative Trustee shall be filled until after the lapse of one calendar month from its occurrence.

23. *Ordinary meetings.*—Each body of Trustees shall hold at least two ordinary meetings in each year.

24. *First meeting.*—(1) The first meeting of the Trustees of King Edward VI Ludlow Charities shall be summoned by the said Francis Malan or if he fails for two calendar months after the date of this Scheme to summon a meeting by any two of the Trustees.

(2) The first meeting of the Trustees of the Ecclesiastical Charity shall be summoned by the said Rector or if he fails for two calendar months after the date of this Scheme to summon a meeting by any two of the Trustees.

25. *Chairman.*—Each body of Trustees at their first ordinary meeting in each year shall elect one of their number to be chairman of their meetings until the commencement of the first ordinary meeting in the following year. The chairman shall always be eligible for re-election. If at any meeting the chairman is not present within ten minutes after the time appointed for holding the same or there is no chairman the Trustees present shall choose one of their number to be chairman of the meeting.

26. *Special meetings.*—A special meeting may be summoned at any time by the chairman or any two Trustees upon four days' notice being given to all the other Trustees of the matters to be discussed.

27. *Quorum.*—There shall be a quorum at a meeting of the Trustees of King Edward VI Ludlow Charities when six Trustees are present and at a meeting of the Trustees of the Ecclesiastical Charity when four Trustees are present.

28. *Voting.*—(1) At every meeting of each body of Trustees every matter shall be determined by the majority of votes of the Trustees present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or

has not voted previously on the same question but except as hereinafter provided no Trustee in any other circumstances shall give more than one vote.

(2) Any person who is at the same time a Trustee of the King Edward VI Ludlow Charities as Mayor of the Borough of Ludlow and also a Trustee as a person duly appointed by the Council of the said Borough shall be entitled to two votes.

29. *Minutes and accounts.*—A minute book and books of account shall be provided and kept by each body of Trustees. All proper accounts in relation to the Charities shall be made out in each year and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners in compliance with the provisions of the Charitable Trusts Acts.

30. *General power to make regulations.*—Within the limits prescribed by this Scheme each body of Trustees shall have full power from time to time to make regulations for the management of the Charities and for the conduct of their business including the summoning of meetings, the deposit of money at a proper bank and the custody of documents.

31. *Clerk.*—The Trustees of the King Edward VI Ludlow Charities may appoint some fit person to be their clerk and to hold office during their pleasure and may pay to him (not being a Trustee) such reasonable salary as they think fit. The Trustees of the Ecclesiastical Charity may appoint the same person or some other fit person to be their clerk and may pay him a salary of £10 a year or such other remuneration as the Charity Commissioners approve from time to time.

MANAGEMENT OF LANDS

45 & 46 Vict.
c. 80.

32. *Allotments Extension Act, 1882.*—The Trustees of King Edward VI Ludlow Charities may set apart and let in allotments in the manner prescribed by and subject to the provisions of the Allotments Extension Act, 1882, any portion of the land belonging to the Charities other than buildings and the appurtenances of buildings.

33. *Management and letting of lands.*—Subject as aforesaid the Trustees of King Edward VI Ludlow Charities shall let and otherwise manage all the lands belonging to the Charities not required to be retained or occupied for the purposes thereof. In every case the Trustees shall give public notice of the intention to let any land in such manner as they consider most effectual for ensuring full publicity. The Trustees shall not create any tenancy in reversion after more than three years of any existing term or for more than 21 years certain or for less than the improved annual value at rackrent without the sanction of the Charity Commissioners or a competent court.

34. *Leases.*—The Trustees of King Edward VI Ludlow Charities shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof. Every lease shall contain covenants on the part of the lessee for the payment of rent, the proper cultivation of the land and all other usual and proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

35. *Repair and insurance.*—The Trustees of King Edward VI Ludlow Charities shall keep in repair and insure for full value against fire all the buildings of the Charities not required to be kept in repair and insured by the lessees or tenants thereof.

KING EDWARD VI LUDLOW CHARITIES

36. *Expenses of Management.*—The Trustees of King Edward VI Ludlow Charities shall first defray out of the income of the said Charities the cost of repairs and insurance and all other charges and outgoings payable in respect of the property of the said Charities and all the proper costs, charges and expenses of and incidental to the administration and management of the said Charities.

37. *Extraordinary Repair Fund.*—(1) Subject to any further Order or Orders of the Charity Commissioners a fund for the extraordinary repair, improvement or re-building of the almshouses and the Reader's House belonging to the Charities shall be provided and maintained as follows:—

(2) The Official Trustees of Charitable Funds shall transfer in their books to the credit of an account to be entitled Extraordinary Repair Fund the sum of £4,377 12s. 2½ per cent. Consolidated Stock part of a sum of £21,977 12s. like stock and the sum of £393 18s. 3½ per cent. War Stock, part of a sum of £24,905 17s. 3d. like stock specified in the said schedule.

(3) The Trustees shall pay to the said Official Trustees a yearly sum of not less than £100 out of the income of the Charities and the said Official Trustees shall invest the yearly sum so paid and the income on the above-mentioned sums of stock at compound interest in the purchase in their name to the credit of the said account of one or more of the stocks, funds and securities (other than real securities) authorised by law for the investment of trust funds.

(4) Subject to the approval of the Charity Commissioners, all stocks, funds and securities standing to the credit of the said account may be applied from time to time by the Trustees for the extraordinary repair, improvement or re-building of the almshouses and the Reader's House for the time being belonging to the Charities.

38. *Saving for existing pensioners.*—The provisions of this Scheme shall have effect without prejudice to the interests of the existing pensioners of the Charities.

39. *Benefit of almspeople.*—Subject to the payments aforesaid the Trustees shall apply the income of the Charities in giving effect to the provisions hereinafter contained for the benefit of the almspeople of the Charities and otherwise for the benefit of the said almspeople or any of them in such manner as the Trustees think fit from time to time.

HOSYER'S ALMSHOUSES AND ALMSPEOPLE

40. *Almshouses.*—The almshouses belonging to the Charities and the property heretofore occupied therewith shall be appropriated and used for the residence of almspeople in conformity with the provisions of this Scheme.

41. *Saving for existing almspeople.*—Appointments of almspeople under this Scheme shall be made without prejudice to the interests of the existing almspeople.

42. *Number and qualifications of almspeople.*—The full number of almspeople shall be twenty-four or such number as the Charity Commissioners by Order prescribe from time to time. They shall be poor persons of good character who (except in special cases to be approved by the Charity Commissioners) have resided in the area of benefit for not less than ten years next preceding the time of appointment.

43. *Attendance in illness.*—The Trustees may provide the almspeople at the cost of the Charities with any necessary attendance in case of illness or permanent infirmity.

44. *Notice of vacancy.*—No appointment of an almsperson shall be made by the Trustees until a sufficient notice of an existing vacancy specifying the qualifications required from candidates has been published in the area of benefit by advertisement or otherwise so as to give due publicity to the intended appointment but it shall not be necessary to publish a notice if a vacancy occurs within twelve calendar months after the last notice of a vacancy has been published. Notices may be according to the form annexed hereto.

45. *Applications for appointment.*—All applications for appointment shall be made in writing to the Trustees or their clerk in such manner as the Trustees direct. Before appointing any applicant to be an almsperson the Trustees shall require him or her to attend in person unless he or she is physically disabled or the Trustees are of opinion that special circumstances render this unnecessary. Every applicant must be prepared with sufficient testimonials and other evidence of his or her qualification for appointment.

46. *Selection of almspeople.*—Every almsperson shall be selected under the following conditions:—

(1) After full investigation of the character and circumstances of the applicants;

(2) Where claims are equal preference shall be given to those applicants who have resided longest in the area of benefit.

For the purposes of this clause the Trustees may avail themselves of the services of any charity organisation society or other like agency.

47. *Appointments of almspeople.*—Every appointment of an almsperson shall be made by the Trustees at a special meeting.

48. *Records.*—The Trustees shall provide and keep a book in which shall be entered the name, age and description of every person appointed to be an almsperson, the date of every appointment and the date and occasion of every vacancy. They shall also keep a register of all applications for appointment.

49. *Absence from almshouses.*—No almsperson shall be absent from the almshouses for a period exceeding 72 hours without the consent in writing of the Trustees or their clerk.

50. *Rooms not to be let.*—No almsperson shall be permitted to let or part with the possession of the room or rooms allotted to him or her or except with the special permission of the Trustees to suffer any person to share the occupation of the same or of any part thereof.

51. *Warden, matron and other officers.*—The Trustees may appoint such warden, matron and other officers dismissible at their pleasure to perform such duties as may be necessary for the superintendence and

care of the almspeople at such reasonable salaries as they think fit and may allot to such warden, matron and officers a room or rooms in the almshouses as a residence while they hold office.

52. *Removal of almspeople.*—(1) The following persons may be removed from being almspeople:—

- (a) Any almsperson who in the opinion of the Trustees is guilty of insobriety, insubordination, breach of regulations or immoral or improper conduct;
- (b) Any almsperson who in the opinion of the Trustees no longer has the required qualifications;
- (c) Any almsperson who has been appointed without having the required qualifications;
- (d) Any almsperson who is suffering from mental or other disease or infirmity rendering him or her unfit to remain an almsperson.

(2) Upon the removal of any almsperson, warden, matron or officers of the Charities the Trustees shall take possession of the room or rooms occupied by them;

(3) Any almsperson removed under section (1) of this clause on account of mental or other disease or infirmity may be reappointed on recovery without previous notice being given of the vacancy and need not have the qualification as to residence.

53. *Regulations.*—The Trustees may prescribe from time to time such reasonable regulations as they consider expedient for the government of the almspeople but so that the same shall not be at variance or inconsistent with any of the provisions of this Scheme and by such regulations may provide that the almspeople shall render such assistance to each other and to the warden or matron as is within their power.

GENERAL CHARITIES FOR THE POOR

54. *General benefit of poor.*—Subject to the payments aforesaid the Trustees shall apply the yearly income of the General Charities for the Poor as they think fit for the benefit either of the poor of the area of benefit generally or of such poor persons resident therein as they select and in particular but without prejudice to the generality of the foregoing in one or more of the following ways:—

- (1) gifts of bedding, clothing, food, fuel, furniture or other useful articles, including comforts or other aids for the sick;
- (2) weekly allowances of a value of not less than 2s. 6d. or more than 10s. except with the approval of the Charity Commissioners provided that instead of paying the whole of such weekly allowance to any recipient in money the Trustees may spend all or part thereof for his or her benefit in such ways as they think fit;
- (3) gifts in money to relieve sickness, infirmity or distress;
- (4) grants for the benefit of persons who are sick, infirm, convalescent or in need of rest or change of air to defray the expense of recuperative holidays or of obtaining domestic help;
- (5) payment of travelling expenses of persons entering or leaving hospitals, convalescent homes or similar institutions or of relatives visiting the sick or infirm in such institutions;

- (6) assistance of persons who are preparing for, entering upon or engaged in any trade, occupation or profession by provision of tools or books, payment of fees for instruction or examination, payment of travelling expenses or such other means as will fit them to earn their own living or advance them in life;
- (7) payments to Hosyer's Almshouse Charities and subscriptions to almshouses and other charitable institutions or organizations having for their object the benefit of the poor of the said area of benefit;
- (8) subscriptions to homes or hostels for the residence or care of old, infirm or homeless persons upon terms which will ensure that their benefits are available for poor persons of the said area of benefit.

55. *Restrictions.*—In applying the income of the General Charities for the Poor the Trustees shall observe the following restrictions:—

- (1) They shall not commit themselves to make recurring grants;
- (2) They shall not give assistance to individuals unless satisfied that they are deserving and in need;
- (3) They shall apply the yearly income of the Widows' Charities for the benefit of poor widows of the said area of benefit.

THE PREACHER OF THE TOWN OF LUDLOW AND THE
READER OR ASSISTANT TO THE RECTOR OF THE SAID TOWN

56. *Preacher and Reader or Assistant.*—The Preacher of the Town of Ludlow, hereinafter called the Preacher, and the Reader or Assistant to the Rector of the said Town shall respectively be fit and proper persons and clerks in Holy Orders and shall be elected by the Ecclesiastical Charity Trustees with the assent of the Rector of Ludlow.

The Preacher and the Reader or Assistant shall be required to perform to the satisfaction of the Ecclesiastical Trustees the duties customarily attached to the offices of the Preacher and the Reader or Assistant respectively, and shall be resident in or near the Borough of Ludlow.

The Preacher and the Reader or Assistant shall, with the approval of the Lord Bishop of the Diocese, be removable for neglect of duty, non-residence, misconduct, or other sufficient cause by a resolution adopted by not less than two-thirds in number of the Ecclesiastical Charity Trustees present at a specially convened meeting of their body, of which meeting not less than 10 days' previous notice has been given to each of the Ecclesiastical Charity Trustees.

A notice under this clause to an Ecclesiastical Charity Trustee may be given by being sent through the post to him at his last known place of abode in Great Britain or Ireland.

When and so often as a vacancy occurs in the office of the Preacher or of the Reader or Assistant, the Ecclesiastical Charity Trustees shall, for the purpose of obtaining a fit and proper person to fill the office, cause notices in sufficient detail of the vacancy to be advertised at least one month before the vacancy is filled in some newspapers of general circulation in London and also in one or more of the principal Church of England newspapers:

Provided that nothing in this clause shall operate to affect prejudicially any existing rights of the present Reader or Assistant.

57. *Application of income.*—(1) If both of the said offices of Preacher and Reader are held by different persons the Trustees shall apply the clear yearly income of the Palmers' Guild Ludlow Charity in or towards paying the stipends of the persons holding the said offices.

(2) If at any time only one of the said offices is filled or if one person is appointed to and holds both offices then the whole of the clear yearly income of the said Charity is to be paid to him.

(3) If at any time neither of the said offices are filled the Trustees shall apply the clear yearly income in or towards paying the stipends and expenses in connexion with their offices of clerical and lay assistants to the said Rector of Ludlow.

CHARITY OF JAMES WALTER FOR RECTOR AND PREACHER

58. *Charity of James Walter for Rector and Preacher.*—The Trustees shall apply the clear yearly income of the Charity of James Walter for the Rector and Preacher to the Rector of Ludlow and to the Preacher of Ludlow in equal shares for their own use and benefit respectively.

If at any time there is no person appointed to and holding the office of Preacher the clear yearly income of the Charity may be paid to the said Rector.

GENERAL PROVISIONS

59. *Appropriation of benefits.*—The appropriation of the benefits of the Charities shall be made by the Trustees from time to time at meetings of their body and not separately by any individual Trustee or Trustees; provided that the Trustees from time to time may appoint two or more members of their body to be a committee for dealing with any cases of emergency but all acts and proceedings of committees shall be reported in due course to the Trustees.

60. *Trustees not to be personally interested.*—No Trustee shall take or hold any interest in property belonging to the Charities otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration, or be interested in the supply of work or goods, at the cost of the Charities.

61. *Charities not to relieve public funds.*—The funds or income of the Charities shall not in any case be applied in relief of rates, taxes or other public funds.

62. *Alteration of Scheme.*—The Charity Commissioners in the exercise of their ordinary jurisdiction may establish from time to time Schemes for the alteration of any of the provisions of this Scheme as if these provisions had been made by the founder in the case of a Charity having a founder.

63. *Questions under Scheme.*—Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

64. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

FORM OF NOTICE

IN THE MATTER OF THE KING EDWARD VI LUDLOW CHARITIES, IN THE
BOROUGH OF LUDLOW, IN THE COUNTY OF SALOP

Notice is given that a vacancy exists for an almsperson of these Charities.

Poor persons of good character who have resided in the Borough of Ludlow as constituted from time to time for not less than ten years next preceding the time of appointment are eligible for appointment. Preference will be given to the applicant who has resided longest in the said Borough.

Application for appointment must be made in writing to
at _____ on or before the 19 .
Every applicant must state his or her name, address, age and occupation and must be prepared to produce sufficient testimonials and other evidence of his or her qualification for appointment and unless physically disabled to attend in person.

Note.—In special cases to be approved by the Charity Commissioners persons who do not possess the prescribed qualification as to residence may be appointed if otherwise qualified.

Signed

Clerk to the Trustees.

SCHEDULE

Description	Extent or amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
<i>Consolidated Municipal Charity—</i>			
Land with the almshouse building thereon in College Street, Ludlow.	—	In hand ...	—
Reader's House	—	In hand ...	—
2½ per cent. Consolidated Stock	21,977 12 0	The Official Trustees of Charitable Funds.	549 8 8
3½ per cent. War Stock	24,905 17 3	do. do.	871 14 0
3½ per cent. Conversion Stock, 1961 or after	665 10 7	do. do.	23 5 10
3 per cent. Savings Bonds, 1960–70 (William Page).	50 18 11	do. do.	1 10 6
2½ per cent. Consolidated Stock (Margaret Phillips).	998 15 0	do. do.	24 19 4
2½ per cent. Consolidated Stock (Thomas Botfield).	151 10 5	do. do.	3 15 8
2½ per cent. Consolidated Stock (Emily Felton).	1,076 14 4	do. do.	26 18 4
2½ per cent. Consolidated Stock (Maria Alicia Johanna Nightingale).	984 0 2	do. do.	24 12 0

4 & 5 ELIZ. 2 *Consolidated Municipal Charity and
certain other Charities (Ludlow)
Scheme Confirmation Act, 1956*

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SCH.—cont.

Description	Extent or amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
<i>The Minor Charities—</i>			
2½ per cent. Consolidated Stock (Thomas Hollingsworth).	50 0 0	The Official Trustees of Charitable Funds.	1 5 0
2½ per cent. Consolidated Stock (Edmund Jones).	437 15 4	do. do.	10 18 8
2½ per cent. Consolidated Stock (Eleanor Handford).	30 0 0	do. do.	15 0
2½ per cent. Consolidated Stock (John Long).	25 0 0	do. do.	12 4
	a. r. p.		
Land situate at Linney, in the Borough of Ludlow, in the County of Salop (Evan Phillips).	1 0 0	Alfred Henry Hopton	8 0 0
Wayleave over the last above-mentioned land.	—	The Postmaster General	1 0
	£ s. d.		
2½ per cent. Consolidated Stock (Mrs. Robinson—Poor Housekeepers).	60 16 4	The Official Trustees of Charitable Funds.	1 10 4
2½ per cent. Consolidated Stock (Richard Nash).	105 0 0	do. do.	2 12 4
2½ per cent. Consolidated Stock (Janns Brettell Vaughan).	100 0 0	do. do.	2 10 0
2½ per cent. Consolidated Stock (Sarah Owen).	1,000 0 0	do. do.	25 0 0
Rentcharge issuing out of land known as Sutton's Close in the Borough of Ludlow (William Archer).	—	A. Higgins ...	1 0 0
2½ per cent. Consolidated Stock (Mary Betenson).	123 13 10	The Official Trustees of Charitable Funds.	3 1 8
Rentcharge issuing out of house in Draper's Lane (Thomas Candland).	—	R. Bullock & Sons ...	1 0 0
2½ per cent. Consolidated Stock (Susan Gay).	57 2 11	The Official Trustees of Charitable Funds.	1 8 4
Rentcharge issuing out of land at Kingsland in the County of Hereford (Susan Gay or Plummer's Money).	—	Major R. Evans and others.	7 0 0
Rentcharge issuing out of property at Dinham in the Borough of Ludlow (Morgan Lloyd).	—	Miss P. Keighley ...	13 4
2½ per cent. Consolidated Stock (Ann Smith).	57 1 5	The Official Trustees of Charitable Funds.	1 8 4
2½ per cent. Consolidated Stock (James Walter).	460 18 1	do. do.	11 10 4
2½ per cent. Treasury Stock 1975 or after (James Walter).	800 0 0	do. do.	20 0 0
2½ per cent. Consolidated Stock (Alderman Richard Davies).	130 0 0	do. do.	3 5 0
Land situate in the Borough of Ludlow (Thomas Lane).	—	Richard Hughes ...	7 0 0
Allotment land situate in the Borough of Ludlow (Thomas Lane).	—	Various tenants ...	10 0 0
2½ per cent. Consolidated Stock (Thomas Lane).	58 4 3	The Official Trustees of Charitable Funds.	1 9 0
3½ per cent. War Stock (Thomas Lane) ...	1,015 19 8	do. do.	35 11 2
Rentcharge issuing out of lands at Broome in the County of Salop (Dr. Charles Sonnibank).	—	Mrs. F. M. Marsh ...	13 6 8
3½ per cent. War Stock (Sir Timothy Tournour and Alderman Thomas Meyricke).	150 0 0	The Official Trustees of Charitable Funds.	5 5 0

Description	Extent or amount	Tenant, person liable or persons in whose name invested	Gross yearly income
	£ s. d.		£ s. d.
3½ per cent. War Stock (Sir Timothy Tourneur and Alderman Thomas Meyricke) (Loan and Advancement Fund).	100 0 0	The Official Trustees of Charitable Funds.	3 10 0
Cash on deposit account at Ludlow branch of Lloyds Bank Limited (Tourneyr and Meyricke).	282 5 4		
<i>Charity of Alfred Lloyd—</i> 3½ per cent. War Stock (Almshouse Fund)	113 18 2	The Official Trustees of Charitable Funds.	3 19 8

Notes:

(1) The freehold and leasehold lands and hereditaments of the Consolidated Municipal Charity then belonging to the Charity were vested in The Official Trustee of Charity Lands by a Scheme of the Charity Commissioners of the 27th July, 1906.

(2) Any rentcharges and freehold or leasehold lands and other hereditaments belonging to the Minor Charities on the 28th June, 1918, and not previously vested in The Official Trustee of Charity Lands were vested in the said Official Trustee by a Scheme of that date.

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